

24VECV04425 24VECV04425

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C09%2F04%2F2026

Source SHA-256: 172e4acfbf98559405432c93b9455f7231b17122431fa4f3d82e1062458238cd

Case Number: 24VECV04425 Hearing Date: September 4, 2026 Dept: T

24VECV04425 Aranda v City of Los Angeles

The motion by the City of LA to bifurcate the trial is denied on the grounds that it would not significantly shorten the trial, would require multiple experts to testify twice, and would cause undue prejudice to plaintiff. There are opinions concerning the medical condition which are intertwined with the issues of liability. The court agrees with the opposition that “the jury cannot determine whether officers’ failure to obtain timely medical care caused Plaintiff’s injury without hearing evidence concerning the progression of his stroke, what timely treatment could have prevented, and what injuries resulted as the stroke progressed.” The court agrees, also, that “bifurcation in this case would fail to preserve the Court’s time and resources. If the jury finds in favor of Plaintiff in a bifurcated liability phase, the parties will need to present second opening, closing, and rebuttal arguments on the issue of damages. Much of the medical testimony Defendant characterizes as damages evidence will be necessary during the liability phase. This would require multiple witnesses to testify in both phases of trial, including expert witnesses, the involved officers, and Plaintiff. The Court would also have to present a second set of jury instructions and the jury would have to deliberate a second time. This is not a complex case requiring months of testimony.” It also would make it confusing to the jury about how much time the trial will take, and make it more difficult to select jurors for a longer, maybe even double in length, trial. While the City focuses on the possible time that would be saved, it does not address the potential problems for the experts, counsel, the court, and the jury in having two trials.